

GORSUCH, J., dissenting

fruitful in the physical sciences, is appropriate also in the judicial function.”⁷²

For all these reasons, while *stare decisis* warrants respect, it has never been “an inexorable command,”⁷³ and it is “at its weakest when we interpret the Constitution.”⁷⁴ In deciding whether one of our cases should be retained or overruled, this Court has traditionally considered “the quality of the decision’s reasoning; its consistency with related decisions; legal developments since the decision; and reliance on the decision.”⁷⁵ Each of these factors, I believe, suggests we should reject the separate sovereigns exception.

Take the “quality of [the] reasoning.”⁷⁶ The first cases to suggest that successive prosecutions by state and federal authorities might be permissible did not seek to address the original meaning of the word “offence,” the troubling federalism implications of the exception, or the relevant historical sources. Between 1847 and 1850, the Court decided a pair of cases, *United States v. Marigold*⁷⁷ and *Fox v. Ohio*.⁷⁸ While addressing other matters in those decisions, the Court offered passing approval to the possibility of successive state and federal prosecutions, but did so without analysis and without actually upholding a successive conviction. Indeed, in place of a careful constitutional analysis, the *Fox* Court merely offered its judgment that “the benignant spirit” of prosecutors could be relied on to protect individuals from too many repetitive prosecutions.⁷⁹ We do not normally give precedential effect to such stray commentary.

⁷² *Burnet v. Coronado Oil & Gas Co.*, 285 U. S. 393, 406–408 (1932) (dissenting opinion) (footnotes omitted).

⁷³ *Pearson v. Callahan*, 555 U. S. 223, 233 (2009).

⁷⁴ *Agostini v. Felton*, 521 U. S. 203, 235 (1997).

⁷⁵ *Franchise Tax Bd. of Cal. v. Hyatt*, 587 U. S. 230, 248 (2019).

⁷⁶ *Janus v. State, County, and Municipal Employees*, 585 U. S. 878, 917 (2018).

⁷⁷ 9 How. 560 (1850).

⁷⁸ 5 How. 410 (1847).

⁷⁹ *Id.*, at 435.